



SPONSOR: Sen. Mantzavinos & Rep. Burns
Sen. Wilson; Reps. Neal, Ortega

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 162

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO THE SEX OFFENDER REGISTRY.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 4120, Subchapter III, Chapter 41, Title 11 of the Delaware Code by making deletions as
2 shown by strike through and insertions as shown by underline as follows:

3 § 4120. Registration of sex offenders.

4 (d) (2) The registration forms shall include, but are not limited to, the following information: the sex offender's
5 legal name, any previously used names, aliases or nicknames, Social Security number, e-mail address or addresses, Internet
6 identifiers, and the age, gender, race and physical description of the sex offender. The registration form shall also include
7 all other known identifying factors, the offense history and the sex offender's current residences or anticipated place of
8 future residences, places of study and/or places of employment, and the registration plate numbers and descriptions of any
9 vehicles owned or operated by the offender, including any watercraft or aircraft with the locations where such vehicles are
10 docked, parked or otherwise stored, copies of that offender's passport, any licenses to engage in an occupation or to carry
11 out a trade or business, and the offender's home telephone number and any cellular telephone numbers. The forms shall
12 also include a statement of any relevant conditions of release, discharge, parole or probation applicable to the sex offender.
13 Additionally, the form shall identify the age of the victim or victims of the offense or offenses and describe the victim's
14 relationship to the offender. The form must require the sex offender to identify any children that reside in the sex offender's
15 current residences or anticipated residences. The form shall also indicate on its face that false statements therein are
16 punishable by law. A photograph of the offender taken at the time of registration shall be appended to the registration form.
17 Notwithstanding any provision to the contrary, a DNA sample will also be taken from the offender. The resulting DNA
18 profile will be submitted for entry into the Combined DNA Index System (CODIS). All information collected pursuant to
19 this paragraph shall be kept in digitized form in an electronic database maintained by the designated Delaware Police
20 facility responsible for registration.

21 (f) (1) Any sex offender who is required to register pursuant to this section who thereafter changes the sex
22 offender's own name, residence address or place of employment and/or study shall reregister with the Delaware State
23 Police by appearing in person within 3 business days of the change. The sex offender shall be required to provide adequate

24 verification of residence at the stated address. The sex offender shall be required to disclose whether any children reside in
25 any of the residences the sex offender identifies as part of the requirement to register. The Superintendent of the Delaware
26 State Police shall be deemed to be the registering agency and shall comply with the requirements of subsection (d) of this
27 section.

28 (m) Notwithstanding any law, rule or regulation to the contrary, any law-enforcement agency may release relevant
29 information collected pursuant to this section where it is necessary to protect the public concerning a sex offender required
30 to register pursuant to this section, except that the identity of a victim of the offense, any arrests not resulting in conviction,
31 the offender's social security number and travel and/or immigration document numbers shall not be released. A law-
32 enforcement agency may notify a non-custodial parent that their child or children were identified by a sex offender as living
33 in the sex offender's residence or anticipated residence.

SYNOPSIS

This Act requires sex offenders, as part of their obligation to register due to their criminal conviction and sentencing, to disclose whether their residences or anticipated residences have a child residing within that residence.

The Act further permits a law-enforcement agency to notify a non-custodial parent that their child or children were identified by a sex offender as either living in the sex offender's current residence or anticipated residence.

Author: Senator Mantzavinos